

LAW AND MOTION TENTATIVE RULINGS
DATE: AUGUST 13, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 24CV02073

MARANI-SCHWARTZ v. DEER PARK ORCHARD & VINEYARD, LLC, et al.

**(UNOPPOSED) DEFENDANT CAROLINE MARANI’S MOTION TO QUASH
SERVICE OF SUMMONS**

**(UNOPPOSED) DEFENDANT ARTHUR BENDER’S MOTION TO QUASH
SERVICE OF SUMMONS**

**(UNOPPOSED) DEFENDANT MALKIM CAPITAL LLC’S MOTION TO QUASH
SERVICE OF SUMMONS**

The motion as to Marani is moot; a revised summons listing new parties following the filing of plaintiff’s second amended complaint was substitute served on Marani on July 17, 2026.

The motions as to defendants Bender and Malkim Capital LLC are granted. Based on the declarations submitted on behalf of and by defendants, no proper substitute service was made on Bender and service on the Secretary of State as to Malkim Capital failed to conform to the statutory requirements as service as a last resort.

No. 26CV01096

SHEWFELT v. CITY OF SANTA CRUZ

PETITION FOR RELIEF FROM GOVERNMENT CLAIMS ACT

As discussed below, the petition is denied.